

		“California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration.” (<i>Coast Plaza Doctors Hospital v. Blue Cross of California</i> (2000) 83 Cal.App.4th 677, 686.) “This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute.” (<i>Id.</i>, quotations omitted.) <u>Parties’ Arbitration Agreement</u> Respondent State Farm submits competent evidence that Claimant Grossman’s then-effective insurance policy includes an arbitration agreement for underinsured motorist claims that reads in relevant part: If there is no agreement, upon written request of the insured or us, the[] questions [of whether the insured is entitled to collect damages from the owner or operator of the uninsured motor vehicle; and in what amount] shall be decided by arbitration as provided by section 11580.2 of the California Insurance Code. The insured’s written request must be sent to us by certified mail, return receipt requested. (Markwith Decl. ¶ 3, Ex. A at p. 14 [emphases in original].) Claimant Grossman’s claims fall within the scope of this arbitration clause. Claimant here seeks additional compensation via her underinsured motorist coverage with Respondent State Farm, after having settled her claim against third-party motorist Jose Wellington for his liability insurance policy limits. (Markwith Decl. ¶ 2.) Claimant initially demanded arbitration, sending a formal demand via counsel on 07/04/2023. (<i>Id.</i> at ¶ 4, Ex. B.) Thereafter, Claimant’s counsel did not respond to inquiries about proposed arbitrator and mediation. (<i>Id.</i> at ¶¶ 5-6.) Claimant chose not to oppose the petition and, thus, concedes the issues presented in the motion. (<i>See, e.g., DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [finding plaintiffs conceded an issue by failing to argue the contrary].) Clerk is ordered to give notice.
2	High Tech Coatings vs. Pen Manufacturing, LLC	The hearing on Plaintiff High Tech Coatings’ motion for summary judgment is CONTINUED to July 23, 2026, at 01:30 pm in Department C10. On February 23, 2026, James Ling of Ling Law Group, APC, filed a motion to be relieved as counsel for Defendant Pen Manufacturing, LLC. While that motion was still pending, but before the court decided the motion, Plaintiff filed the motion for summary judgment on March 10, 2026, while Defendant was still represented by counsel. Plaintiff’s motion for summary judgment was served on Defendant’s counsel.